



DEPARTMENT OF PUBLIC SAFETY

Division of Homeland Security and Emergency Management

COLORADO URGENT INCIDENT RESPONSE FUND

8 CCR 1507-49

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1. Authority

This regulation is adopted pursuant to the authority in section 24-33.5-1623, C.R.S., and is intended to be consistent with the requirements of the State Administrative Procedures Act, section 24-4-101 et seq. (the "APA").

2. Scope and Purpose

This regulation shall govern the use of the Colorado Urgent Response Incident Fund (Fund), including:

1. Applying for reimbursement;
2. Eligibility for determining the amount of reimbursement; and
3. The distribution and receipt of an approved reimbursement.

This regulation does not apply to reimbursement to state agencies and local governments at the level of disasters, emergencies, or disaster emergencies as defined in sections 24-33.5-702, 24-33.5-703, and 24-33.5-704, C.R.S.

3. Applicability

The provisions of this section shall be applicable to all eligible applicants as provided by law.

4. Definitions

"Division" means the Division of Homeland Security and Emergency Management, within the Colorado Department of Public Safety.

"Fund" means the urgent incident response fund created in section 24-33.5-1623 (2), C.R.S.

"Local Government" means a city, county, municipality, city and county, tribal government, or any other political subdivision of the state that is not a state agency.

"Quarterly Progress Report" means a written form or other document determined by the state agency to indicate and report the operational and financial activity of the recipient during the time period specified.

"Reimbursement Request" means a written form or other document determined by the state agency to be used by the fund recipient to request reimbursement from the fund for qualifying expenditures.

"State Agency" means any department, division, commission, council, board, bureau, committee, office, agency, or other governmental unit of the state.

“Summary Report” means a written form or other document determined by the state agency allowing the fund recipients to report the final operational and financial activity of the funds.

“Urgent Incident” means any incident that does not rise to the level of a disaster, an emergency, or a disaster emergency and for which programmatic responsibilities are already in place.

5. Program Requirements

5.1 Eligibility

- A. Eligibility is limited to State Agencies and Local Governments as defined above.

5.2 Urgent Incident Need

- A. Eligible recipients must demonstrate an urgent need beyond expected programmatic responsibilities and document why the circumstances were not programmed and are urgent, but do not rise to the level of an emergency, a disaster, or a disaster emergency.

5.3 Request for Funding

- A. Eligible applicants must submit a written request in the application developed by the Division.

5.4 Amount of the Reimbursement

- A. Reimbursement shall not exceed the annual appropriation.

5.5. Determining the Amount of Reimbursement

- A. The amount of the reimbursement is at the discretion of the Division and will be determined in a collaborative process with the eligible applicant.
- B. The Division will take into consideration:
 - 1. The urgency of the circumstances;
 - 2. The financial capability of the applicant;
 - 3. Cost sharing; and,
 - 4. Other factors that may be applicable to the applicant’s need.

5.6 Distribution of Funds

- A. For local government awardees, funds will be distributed according to the terms of the Division.
- B. For state agency awardees, funds will be distributed according to the terms in the approved State of Colorado Interagency Agreement.
- C. Based upon an articulated need, the Division may advance funds to awardees.

5.7 Reporting Requirements

- A. Awardees will provide the division with reports consistent with the requirements in the appropriate grant agreement or interagency agreement including, but not limited to:

1. Quarterly Progress Reports
2. Summary Report upon completion of the project; and,
3. Reimbursement Requests

6. Restrictions

- A. The Fund cannot be used for any of the following purposes:
1. For any of the purposes specified in section 24-33.5-702, C.R.S.;
 2. To reimburse state agencies or local governments for the costs of responding to disasters as defined in section 24-33.5-703 (3) or emergencies as defined in section 24-33.5-703 (3.5), C.R.S.; or
 3. For the purpose of responding to a disaster emergency declared pursuant to section 24-33.5-704, C.R.S.

Editor's Notes

History

New rule emer. rule eff. 08/24/2023; expired 12/22/2023.

Entire rule eff. 01/14/2024.